

24NNCV00806 24NNCV00806

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Case Number: 24NNCV00806 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

motionS TO COMPEL FURTHER
RESPONSES

Los

Angeles Superior Court Case # 24NNCV00806

MP: Plaintiffs

Debra Biane and Gerald Biane

RP: Defendant Universal City Studios, LLC

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

Debra Biane, Gerald Biane, Josh Taylorson, and Sami-Joh Goldberg (collectively "Plaintiffs") allege that, on April 7, 2022, they were visitors of Universal City Studios LLC's ("Defendant") amusement park. Plaintiffs allege that a malfunction in the "Harry Potter and the Forbidden Journey" ride caused the ride to stall, trapping Plaintiffs for approximately one hour. Plaintiffs allege they sustained serious injury due to being trapped on the ride.

The Second Amended Complaint ("SAC"), filed February 23, 2026, alleges: (1) Premises Liability; (2) Negligence; (3) Common Carrier Liability; (4) Negligent Infliction of Emotional Distress; and (5) Loss of Consortium.

On April 3, 2026, Plaintiffs Sami-Joh Goldberg and Josh Taylorson dismissed the complaint with prejudice. As such, the remaining Plaintiffs are Debra Biane and Gerald Biane.

MOTIONS ON CALENDAR:

There are four discovery motions on calendar. On May 12, 2026, Plaintiffs Debra Biane and Gerald Biane each filed motions to compel Defendant's further responses to: (1) Special Interrogatories, set two ("SROG"); and (2) Requests for Production of Documents, set two ("RPD"). On August 28, 2026, Defendant filed opposition. On September 3, 2026, Plaintiffs filed replies.

LEGAL STANDARD:

A.

Motion to Compel Further Responses to Interrogatories

A motion to compel further interrogatory responses may be brought based on: (1) answers that are evasive or incomplete, (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response, or (3) unmerited or overly generalized objections. (C.C.P.

§2030.300(a).) The motion must be accompanied by a meet and confer declaration.

(C.C.P. § 2030.300(b)(1).) The motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing.

(C.C.P. § 2030.300(c).)

The responding party has the burden of justifying the objections thereto. (Coy v. Sup. Ct. (1962) 58 Cal.2d 210, 220-21.)

B.

Motion to Compel Further Responses to RPD

A motion to compel further RPD responses may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (C.C.P. § 2031.310(a).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand and be accompanied by a meet and confer declaration. (C.C.P. § 2031.310(b)(1).) "Good cause" is shown by "a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224.) The motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. § 2031.310(c).)

If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court of Los Angeles County (2002) 95 Cal.App.4th 92, 98.)

ANALYSIS:

A.

SROG

Biane Plaintiffs move to compel

Defendant's further responses to SROG Nos. 138-177. The Court will consider the motions together as they involve essentially identical requests.

On July 7, 2026, the Court held

an Informal Discovery Conference ("IDC") and advised Defendant to provide supplemental discovery responses no later than July 24, 2026. (July 7, 2026 Minute Order at p.1.)

In opposition, Defendant

represents that, following substitution of counsel and the IDC, it served omnibus supplemental responses to Biane Plaintiffs' SROGs on July 28, 2026. Copies of the supplemental responses are attached as Exhibit B to defense counsel Bianca Caro's declarations.

Biane Plaintiffs argue that the

motions are not mooted by the supplemental responses because they are unverified, are not code-compliant, fail to identify witnesses, and improperly refer to C.C.P § 2030.230 placing the burden on Plaintiffs to sift through documents instead of receiving straightforward responses.

The motions to compel Defendant's

further responses to each of the Biane Plaintiffs' SROGs are granted. A review of the supplemental responses shows that they were not verified. Thus, the motion is granted to the extent that Defendant will be ordered to provide verified, supplemental responses to the SROGs.

If Plaintiff still finds the discovery responses deficient, the parties are ordered to cooperate and engage in good faith meet and confer efforts telephonically or in person.

B.

RPD

Biane Plaintiffs move to compel

Defendant's further responses to RPD Nos. 88-116. The Court will consider the two motions together.

For the same reasons discussed above, the Court grants the motions to compel Defendant's further verified responses to the RPDs.

C.

Sanctions

Biane Plaintiffs seek \$2,560 in sanctions per SROG motion against Defendant and its counsel of record (= [2.9 hours for the motion] + [2.1 anticipated hours to review and reply to the opposition, and attend the hearing] at \$500/hour, plus \$60 filing fees).
(Schwar re SROG Motions, ¶¶17-19.)

Biane Plaintiffs seek \$2,760 in sanctions per RPD motion against Defendant and its counsel of record (= [3.3 hours for the motion] + [2.1 anticipated hours to review and reply to the opposition, and attend the hearing] at \$500/hour, plus \$60 filing fees).
(Schwar re RPD Motions, ¶¶17-19.)

The Court will award sanctions in favor of Biane Plaintiffs for bringing these motions, as these motions and the IDC prompted Defendant to provide supplemental responses. However, as represented by Biane Plaintiffs, the responses were unverified, such that Biane Plaintiffs were ultimately meritorious in their motions. The requests for sanctions is granted in the amount of \$2,060 per motion (= [4 hours per motion x \$500/hour] + \$60 filing fees), which the Court finds reasonable as the motions are essentially duplicative in form.

Biane Plaintiffs also seek to impose the motions against Defendant and its then-counsel of record, counsel of record Jaion Chung, Roya Fohrer, Bayan Salehi, Patrick Babajanian, and Kahana and Feld LLP, jointly and severally, as noticed in the motions.

Biane Plaintiffs argue that prior counsel cannot escape sanctions by withdrawing from the case. (See e.g., *Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902, 909 [finding that the fact that firm exited representation shortly before discovery motion was filed did not insulate the firm from sanctions for its prior discovery misuse].) The Court declines to enter sanctions against prior defense counsel. Although Plaintiffs found Defendant's initial responses to be unsatisfactory, the meet and confer records show the parties exchanged letters about the responses/objections. Furthermore, the emails show that prior defense counsel, Patrick Babajanian, was amenable to resolving the issues informally, including by suggesting the IDC, which ultimately occurred and resulted in Defendant's (unverified) supplemental responses. (Babajanian Decl., Ex. G.) Thus, sanctions will be imposed against

Defendant only.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiffs Debra Biane and Gerald Biane's Motions to Compel

Further Responses came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

PLAINTIFFS DEBRA BIANE AND GERALD BIANE'S MOTIONS TO COMPEL
DEFENDANT'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO, AND RESPONSES
TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, ARE GRANTED. RESPONSES
ARE TO BE MADE WITHIN 30 DAYS.

DEFENDANT IS ORDERED TO PAY
MONETARY SANCTIONS IN THE AMOUNT OF \$4,120 TO PLAINTIFF DEBRA BIANE, BY AND
THROUGH COUNSEL, WITHIN 30 DAYS OF THIS ORDER.

DEFENDANT IS ORDERED TO PAY
MONETARY SANCTIONS IN THE AMOUNT OF \$4,120 TO PLAINTIFF GERALD BIANE, BY AND
THROUGH COUNSEL, WITHIN 30 DAYS OF THIS ORDER.

PLAINTIFF DEBRA BIANE TO PROVIDE NOTICE.

IT IS SO ORDERED.